

Important Information for Tentative Rulings and Hearings:

1. Please review and follow the Tentative Ruling Instructions which can be found on the Court's website using the following link: <https://sf.courts.ca.gov/divisions/unified-family-court/ufc-tentative-rulings>.
2. If you wish to make an objection to the Tentative Ruling in your case, you must notify the other party (unless there is a restraining order in place) and the Court Clerk in the Department where the hearing is scheduled of your objection by 4:00 PM the Court day prior to the hearing date. Court days do not include Court holidays, Saturdays, or Sundays. The Court's Holiday Schedule can be found on the Court's website using the following link: <https://sf.courts.ca.gov/general-information/holiday-schedules>.
3. To contact the Court Clerk in Dept. 403 to make an objection to the Tentative Ruling in your case, please call (415) 551-3741 or send an email to Department403@sftc.org.
4. To contact the Court Clerk in Dept. 404 to make an objection to the Tentative Ruling in your case, please call (415) 551-3744 or send an email to Department404@sftc.org.
5. To contact the Court Clerk in Dept. 414 to make an objection to the Tentative Ruling in your case, please call (415) 551- 3756 or send an email to Department414@sftc.org.
6. When you contact the Court Clerk to make an objection to the Tentative Ruling in your case, please specify the paragraph(s) and / or line number(s) of the Tentative Ruling which contains the language to which you object.
7. You may appear at your hearing either (a) in-person; (b) by video; or (c) by phone. Pursuant to SFLR 11.7(D)(4), if you choose to appear by video or phone, you must be continuously connected to Zoom from 8:50 a.m. until 12:00 p.m. or until your hearing is concluded (or from 1:20 p.m. until 4:30 p.m. or until your hearing is concluded, if your hearing is scheduled to start at 1:30 p.m.). If you fail to appear in-person, by video, or phone, the Court may proceed with the hearing in your absence. The Court is not required to contact you before your hearing.
8. If you choose to appear by video or by phone, you must comply with the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth below.

**SAN FRANCISCO SUPERIOR COURT
UNIFIED FAMILY COURT
NOTICE AND INSTRUCTIONS FOR REMOTE APPEARANCES**

You may appear at your court hearing either (1) in-person or (2) remotely by video or telephone. If you fail to appear in-person or remotely by video or telephone, the court may proceed with the hearing in your absence. **The clerk will NOT contact you.** Remote appearances by video or telephone can be made utilizing the **ZOOM** platform, **effective January 2, 2024:**

- If you are *joining by video*, go to www.zoom.com/join and follow the instructions below:
 - Type in the Meeting ID (*see below for department Meeting IDs and Passcodes*) and click "Join".
 - Click "Launch Meeting" then "Open zoom.us".
 - Zoom will launch and you will be asked for the Meeting Passcode. *Enter the passcode for your Meeting ID for the respective department for your court hearing.*
 - Enable your camera and click "Join".
 - Once you join, a prompt to use computer audio will appear, click "Join with Computer Audio".
 - **Enter your full first and last name TO IDENTIFY YOURSELF TO THE COURT.**
 - Using headphones may help you hear more clearly.
- If you are *joining by phone*, dial 1-(669)254-5252 or 1-(669)216-1590 and enter the Meeting ID and Passcode as described below.

Department 403
Meeting ID: 161 463 0304
Passcode: 114482

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1614630304?pwd=OTZ1cVZaQlRYWXpFQ2hTaEFuZnhIZz09>

Department 404
Meeting ID: 161 305 3325
Passcode: 282709

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1613053325?pwd=SkdXWGVkQkowckJSNnJwSSStYkR6dz09>

Department 414
Meeting ID: 161 123 0725
Passcode: 040696

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1611230725?pwd=d1JPVDZmSEZTMlpuODhJVTZ4ZE1FZz09>

When you join the hearing on Zoom:

1. **You are to mute your audio when you are not speaking.**
2. State your name before you speak for proper identification to the court and for all the parties in your case. Only one person **MUST** speak at a time.

PROHIBITION ON RECORDING: **Do not record the hearing in any way.** Any recording of a court proceeding, *including screen shots, other visual or audio copying* of the hearing, is **prohibited**. Any violation is punishable to the fullest extent under the law, including but not limited to monetary sanctions up to \$1,000, restricted entry to future hearings, or other sanctions deemed appropriate by the court.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ANDREW KOKLIONG GAN,

Petitioner

VS.

HANNAH YUIN YEE LEONG,

Respondent

) Case Number: FDI-16-785159

) Hearing Date: August 25, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties in this matter are Petitioner Andrew Gan (Father) and Respondent Hannah Leong (Mother). The parties married on 10/10/1996. The parties disagree regarding their date of separation, but agree their marriage is at least 18 years in duration. The parties have three adult children, Rachel (DOB: 2/21/2001, age 24), Abigail (DOB: 7/25/2004, age 21), and Joshua (DOB: 3/12/2008, age 18). Father is currently represented by attorney Clifton Lurkis. Mother is represented by attorney David Korsunsky.
- 2) Although this case was opened in 2016, there has been no Judgment entered in this matter to date.
- 3) On 11/1/2023, a Stipulation and Order for Temporary Child and Spousal Support was filed. This order requires Father to pay Mother guideline child support of \$2,120 per month and temporary spousal support of \$3,119 per month (which is based on Father's earning \$17,500 in base salary per month and Mother's earning \$4,880 in base salary per month). The order also includes a two-way Smith / Ostler order.

- 1 4) On 11/26/2025, Father filed a Request for Order asking the Court to modify the child and spousal
2 support orders set forth in the 11/1/2023 Stipulation and Order. Both parties filed pleadings
3 regarding Father's 11/26/2025 Request for Order.
- 4 5) At the prior 2/19/2026 hearing (per the Findings and Order After Hearing filed 3/2/2026), the
5 Court made the following orders:
- 6 a. Both parties' requests to modify child and temporary spousal support are denied, but this
7 issue will be revisited at a review hearing set for 6/11/2026.
 - 8 b. The Court ordered Mother to spend a minimum of 10 hours per week seeking work and
9 apply for 3 jobs per week.
 - 10 c. The Court granted a Gavron warning against Mother.
 - 11 d. The Court set a review hearing for 6/11/2026 to review Mother's work search history,
12 determine whether to impute Mother with additional income, and determine whether to
13 modify child and temporary spousal support.
- 14 6) On 5/22/2026, Father filed a Declaration, Memorandum of Points and Authorities, Income and
15 Expense Declaration, and Statement of Support Calculations. Father states Mother has not used
16 her best efforts to become self-supporting. Father asks the Court to impute Mother an annual
17 salary of \$146,000. Father asks the Court to modify child support retroactive to the date he filed
18 his Request for Order (i.e., 11/26/2025). Father asks the Court to issue a Richmond step-down
19 order terminating spousal support entirely by 2/19/2027. Father further requests \$5,000 in Family
20 Code section 271 attorney's fees sanctions.
- 21 7) On 6/1/2026, Mother filed a Supplemental Declaration, Income and Expense Declaration, and
22 Statement of Support Calculation. Mother states that she works full time at the San Francisco
23 Bible Church, where she earns \$72,467 per year. Mother states in March 2026 she received a
24 bonus of \$6,915.89, which brings her total income from San Francisco Bible Church to
25 approximately \$80,000. Mother states that she also began an additional paid position at the
26 Slainte Volleyball Club ("SVC") in February 2026, where she earns \$35 per hour for
27 approximately 10 to 20 hours per week — roughly \$17,500 to \$35,000 per year. This brings
28 Mother's income to \$97,500 to \$115,000 per year, which Mother states is in the earning capacity
29 range identified by the vocational expert (i.e., \$95,000 to \$146,000).

1 8) On 6/2/2026, Father filed a Submission of Attorney Billing Statements in Support of His Request
2 for Family Code 271 Sanctions.

3 9) On 6/3/2026, Father filed Objections to Mother's Supplemental Declaration, seeking to strike
4 various paragraphs and portions of the attached exhibits on the grounds of prior inconsistent
5 statements, lack of foundation, lack of personal medical expertise, hearsay, speculation, absence
6 of competent medical evidence, failure to produce supporting records, improper expert testimony,
7 mischaracterization of evidence, introduction of new matter not previously disclosed,
8 contradiction by documentary evidence, internal inconsistency, misleading statements, violation
9 of court orders, failure to timely disclose information, unfair surprise, prejudice, and discovery
10 abuse. Father also asks the Court to make an adverse credibility finding against Mother.

11 10) On 6/4/2026, Mother filed a Motion to Strike Father's Objections to Supplemental Declaration.
12 Mother states, "Respondent lacks the opportunity to provide a meaningful response to this
13 unauthorized pleading in a deliberate and timely manner prior to the hearing, and hence her due
14 process rights are directly implicated. Respondent therefore asks that Petitioner's improperly
15 submitted "objection" be stricken under CCP §436(b), which gives the Court the power to "Strike
16 out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a
17 court rule, or an order of the court."

18 11) At the 6/11/2026 hearing, because the parties did not stipulate to a Judge Pro Tem making orders
19 that day, the matter was continued to 8/25/2026.

20 12) No pleadings have been filed regarding child and spousal support since before the 6/11/2026
21 hearing date.

22 **B. Findings and Order**

23 1) At the prior 2/19/2026 hearing, the Court denied both parties' requests to modify child and
24 temporary spousal support and set a review hearing on 6/11/2026 (which was later continued to
25 8/25/2026) to revisit whether to modify child and temporary spousal support. The Court did not
26 reserve jurisdiction to modify child or temporary spousal support retroactive to the date Father
27 filed his Request for Order. Father's request to modify child and temporary spousal support
28 retroactive to the date he filed his Request for Order is denied.
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- 2) The parties' youngest child turned 18 in February 2026 and graduated from high school in May 2026. Mother also secured a second position of paid employment in February 2026. These are circumstances warranting a modification of child and temporary spousal support.
- 3) Effective 6/1/2026, child support is set at \$0 and Father shall pay to Mother \$2,660 per month in temporary guideline spousal support in accordance with the XSpouse calculation attached to Mother's Statement of Guideline Calculation filed 6/1/2026.
- 4) In accordance with the Bonus Tables attached to Mother's Statement of Guideline Calculation filed 6/1/2026, the parties shall each pay bonus support on all income they receive in excess of their base salary (as used in the guideline support calculation), of any kind whatsoever, on a quarterly basis. The parties shall exchange financial information within seven calendar days of the close of a quarter, and payments shall be made within seven calendar days of the parties' exchange of information.
- 5) Father's request to impute additional income to Mother (beyond the \$8,051 per month used for Mother in her guideline support calculation) is denied without prejudice to the Court's ability to impute additional income to Mother when it determines long-term spousal support.
- 6) Father's request for a "Richmond step-down order" for spousal support is denied without prejudice to the Court's ability to consider this request when it determines long-term spousal support.
- 7) Paragraphs 5 and 6 of the Stipulation and Order for Temporary Child and Spousal Support filed 11/1/2023 shall remain in full force and effect as the Court shall remain in full force and effect.
- 8) The parties shall meet and confer to determine whether any child or spousal support arrears or credits are due and owing between the parties as a result of the modification of child and temporary spousal support set forth above, and the Court's jurisdiction over this issue is reserved. If the parties are unable to reach an agreement regarding this issue, either party may file a new Request for Order.
- 9) Father's request to strike various paragraphs of and portions of the exhibits attached to Mother's Supplemental Declaration filed 6/3/2026 is denied.
- 10) Father's request for Family Code section 271 attorney's fees sanctions is denied.
- 11) Father's attorney shall prepare the Findings and Order After Hearing.

1 12) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
2 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
3 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
4 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
5 proposed order after hearing directly to the court. Failure to submit the order after hearing within
6 10 days may allow the other party to prepare a proposed order and submit it to the court in
7 accordance with CA Rules of Court, Rule 5.125(d).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

RYAN FARR,

Petitioner

VS.

CESALEE VENEMA,

Respondent

) Case Number: FDI-16-785725

) Hearing Date: August 25, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Ryan Farr (Father) and Respondent Cesalee Venema (Mother) have two minor children together, Tanner (DOB 9/20/2009, age 16) and Scarlett (DOB 3/27/2012, age 14). Mother has parenting time on alternating weekends from Friday school pick up to Sundays at 3pm (drop off at Father's home, curbside).
- 2) The matter is on for a review hearing. The Court ordered the parties to file and serve update declarations at least 10 days before the review hearing. It appears Father attempted to file an update declaration but did not file the declaration after it was rejected for filing. Mother has not filed an update declaration.

B. Findings and Orders

- 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor children is the United States.

- 1 2) Neither party has requested modification of the current custody and parenting time orders. All
2 prior orders shall therefore remain in place, and no further review hearings will be set at this time.
3 If either party has any new custody or parenting time requests, they may file a new request for
4 order.
- 5 3) Father's attorney shall prepare the Findings and Order After Hearing.
- 6 4) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
7 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
8 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
9 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
10 proposed order after hearing directly to the court. Failure to submit the order after hearing within
11 10 days may allow the other party to prepare a proposed order and submit it to the court in
12 accordance with CA Rules of Court, Rule 5.125(d).
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JEFFREY CHRISTOPHER GALLAGHER,

Petitioner

VS.

KIMBERLY MARIE GALLAGHER,

Respondent

) Case Number: FDI-17-788705

) Hearing Date: August 25, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Jeffrey Gallagher (Father) and Respondent Kimberly Gallagher (Mother) have two minor children together, Lilah (DOB 8/23/2012, age 14) and Poppy (DOB 7/22/2014, age 12). The parties have shared joint legal and physical custody since 2019. On 8/27/2024, after Father moved to Hollister, the Court modified the parenting time and holiday schedule.
- 2) At a 3/26/2026 hearing on Father's request for modification of parenting time, the parties met with the volunteer attorney of the day and reached an agreement for specific daytime and weekend visits and travel time for Father as well as a regular schedule for Father to have the second and fourth weekends of the month from Friday at 5:30pm to Sunday at 7pm. The parties also set a dinner visit schedule for Father for the rest of the school year and agreed to meet with a mediator or coparenting counselor to determine the schedule for the new school year. The parties also requested a review hearing, and a hearing was set for 8/25/2026.
- 3) Both parties have submitted update declarations. Father requests parenting time on alternating weekends from Thursday after school to Monday morning drop off (or Tuesday morning drop off

1 if Monday is a school holiday) and for the weekday dinner visits to go from 5:30pm to 9pm
2 instead of until 8pm. He states that 2.5 hours for dinner visits is insufficient because it requires
3 him to end the visit at 7:40pm to leave time for drop off. He also asks for shared transportation
4 responsibilities. Finally, he describes a recent conflict that arose relating to one of the children's
5 makeup bag and asks for a "clear provision" permitting the children to bring their personal
6 belongings such as clothing and makeup between households.

- 7 4) Mother opposes Father's request to change the current schedule, which she states "is itself a
8 recent substantial increase" to which the children are still adjusting. She expresses concern about
9 Father's ability to consistently transport the children to their activities and states he did not
10 exercise his visits when he took a personal trip to Ireland. Mother opposes Father's request for
11 shared transportation responsibilities, stating she already performs a significant amount of
12 transportation for all school, sports, extracurricular, social, and other activities. Finally, she
13 explains why she believes an order regarding the children's personal belongings is not necessary.

14 **B. Findings and Orders**

- 15 1) This Court has jurisdiction to make child custody orders in this case under the Uniform
16 Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party
17 in violation to civil or criminal penalties, or both. The country of habitual residence of the minor
18 children is the United States.
- 19 2) The Court finds it is in the children's best interest for the parties to continue sharing joint legal
20 and physical custody. Beginning immediately, Father's parenting time shall be as follows: (1)
21 second and fourth weekends, from Friday at 5:30pm to Monday school drop off; (2) weekly
22 dinner visits from 5:30pm to 8:30pm, with the parties meeting and conferring about the dates of
23 the visits at the beginning of each month; (3) Father to conduct all transportation for all visits,
24 except that if there are two dinner visits in any given week (one for each child) instead of one
25 joint visit, Mother shall conduct the transportation at the end of the second dinner visit. The Court
26 declines to issue any orders relating to the children's personal belongings.
- 27 3) The Court will prepare the Findings and Order After Hearing.
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

TIMOTHY ANDREW CARLBERG,

Petitioner

VS.

AMEENA GILL,

Respondent

) Case Number: FDI-18-789055

) Hearing Date: August 25, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER OF REQUEST FOR ORDER RELATED PARENTING ISSUES

TENTATIVE RULING

The parties are ordered to appear in Dept. 404 at 9 AM on 8/25/2026 in-person or by Zoom video. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

- 1) Petitioner Timothy A. Carlberg (Father) and Respondent Ameena Gill (Mother) have one minor child together, Gavin (DOB 3/1/2017, age 9). The parties share joint legal and physical custody of Gavin and have been following a 2-2-5-5 parenting time schedule since the fall of 2024. (See 6/10/2024 Findings and Order After 4/23/2024 Hearing.)
- 2) On for hearing is Father's request for a week-on, week-off schedule with a Sunday evening exchange starting in the fall of 2026, a modification of the current 15-minute FaceTime call schedule, a right of first refusal, and orders for the selection of extracurricular activities and an assessment for Gavin. Mother opposes Father's proposed changes, seeks clarification regarding the selection of extracurricular activities, asks the Court to admonish Father to comply with prior orders, and requests a different kind of assessment for Gavin. Father has filed a reply in which he responds to Mother's declaration. The Court has reviewed and considered the parties' filings.

1 **B. Findings and Orders**

- 2 1) This Court has jurisdiction to make child custody orders in this case under the Uniform
3 Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party
4 in violation to civil or criminal penalties, or both. The country of habitual residence of the minor
5 child is the United States.
- 6 2) **The parties are ordered to appear in person or via Zoom video on 8/25/2026 at 9am in**
7 **Department 404.**
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JENNIFER JEAN PHILLIPS,

Petitioner

VS.

DAVID ERIC PHILLIPS-KERLEY,

Respondent

) Case Number: FDI-23-798937

) Hearing Date: August 25, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

ORDER TO SHOW CAUSE AND AFFIDAVIT FOR CONTEMPT; REQUEST FOR ORDER -
OTHER: DISCHARGE COUNTS 1-19 AND 21-42 OF ORDERS TO SHOW CAUSE; ORDER TO
SHOW CAUSE AND AFFIDAVIT FOR CONTEMPT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties in this matter are Petitioner Jennifer Jean Phillips (Wife) and Respondent David Eric Phillips-Kerley (Husband). The parties married on 1/3/1998. Wife contends the parties' date of separation is 3/31/2023, for a marriage of 25 years and 3 months. Husband contends the date of separation is "to be determined."
- 2) On 11/13/2025, Wife filed an Order to Show Cause and Affidavit for Contempt alleging the following counts:

Count 1

July 24, 2024 Order

Failed to serve Preliminary Declaration of Disclosure (Family Code § 2104).

Count 2

July 24, 2024 Order

Failed to file FL-141 proof of service of disclosures with the Court.

Count 3

July 24, 2024 Order

Failed to open required joint community account as ordered.

Count 4

July 24, 2024 Order

Failed to deposit court-ordered funds back into said account.

Count 5

July 24, 2024 Order

Failed to provide Petitioner with access credentials to the account.

Counts 6–10

September 11, 2024 Hearing

Repeated identical violations of Counts 1–5 after court reaffirmed prior orders and extended deadlines.

Counts 11–15

October 9, 2024 Hearing

Continued identical noncompliance following third court directive. Respondent's nonperformance after three separate hearings constitutes fifteen distinct willful violations.

Count 16

September 2024 Hearing

1 Defiance of Freeze Order - At the September 11 2024 hearing, the Court imposed a financial
2 freeze on community accounts pending forensic review. Respondent subsequently transferred and
3 accessed funds in defiance of that order.

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5 Count 17

6 October 2024 Hearing

7 Defiance of Freeze Order - Despite renewed warnings and continuation of the freeze on October
8 14, 2024, Respondent again accessed and manipulated community accounts, demonstrating
9 ongoing contempt for the Court's authority.

10
11 Count 18

12 Post-Freeze Transfer of \$126,000 Through PayPal

13 In or about September 2025, while the freeze order remained in effect, Respondent moved
14 approximately \$126,000 through PayPal and related electronic platforms to his civilian in 76
15 separate transactions. These deliberate transfers violated the freeze and were intended to conceal
16 community assets.

17
18 Count 19

19 Withdrawal of Deferred Compensation After ATRO

20 In April 2024, after service of the Summons and ATROs, Respondent withdrew over \$29,000
21 from the deferred-compensation account. This constituted a direct violation of Family Code §
22 2040(a)(2) prohibiting transfer or disposal of property without written consent or court
23 authorization.

24
25 Count 20

26 In October 2024 after the service of the Summons and the ATROs, Respondent withdrew 11,000
27 from the deferred-compensation account. This constituted a direct violation of the Family Code §
28 2040(a)(2) prohibiting transfer or disposal of property without written consent or court
29 authorization.

Count 21

Failure to Pay Court-Ordered Forensic Accountant Fees

At the July 24 2024 hearing, the Court ordered Respondent to pay 100% of the cost of a forensic accountant to assist with financial tracing. He has made no payment and has ignored all subsequent directives.

Count 22

Failure to Pay \$10,000 Sanctions

At the same July 24 2024 hearing, Respondent was sanctioned \$10,000 for discovery noncompliance, payable to Petitioner by August 31 2024. He has failed to pay any portion, in open defiance of the Court's order.

- 3) On 4/24/2026, Wife filed a second Order to Show Cause and Affidavit for Contempt alleging the following additional counts:

Count 23

Order: July 24, 2025

Violation: Failed to serve Preliminary Declaration of Disclosure (Family Code §2104).

Count 24

Order: July 24, 2025

Violation: Failed to file FL-141 proof of service of disclosures with the Court.

Count 25

Order: July 24, 2025

Violation: Failed to open required joint community account as ordered.

Count 26

Order: July 24, 2025

1 Violation: Failed to deposit court-ordered funds into the joint account.

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3 Count 27

4 Order: July 24, 2025

5 Violation: Failed to provide Petitioner with access credentials to the account.

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7 Count 28

8 Order: July 24, 2025 (reaffirmed by Court)

9 Violation: Continued identical violations of Counts 23–27 after court reaffirmed prior orders and
10 extended deadlines.

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12 Count 29

13 Order: September 11, 2025 – Freeze Order

14 Violation: Continued defiance of freeze order and continued spending outside normal living
15 expenses.

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17 Count 30

18 Order: October 9, 2025 – Sanctions Order (\$10,000)

19 Violation: Continued failure to pay court-ordered sanctions.

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21 Count 31

22 Order: October 9, 2025 – Forensic Accountant Order

23 Violation: Continued failure to pay court-ordered forensic accountant fees.

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25 Count 32

26 Order: October 9, 2025 – Exclusive Use and Possession Order

27 Violation: Continued refusal to vacate the marital residence as ordered.

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Count 33

Order: July 24, 2025 (reaffirmed January 20, 2026)

Violation: Continued failure to serve Preliminary Declaration of Disclosure.

Count 34

Order: July 24, 2025

Violation: Continued failure to file FL-141 proof of service.

Count 35

Order: July 24, 2025

Violation: Continued failure to open joint account.

Count 36

Order: July 24, 2025

Violation: Continued failure to deposit funds into joint account.

Count 37

Order: July 24, 2025

Violation: Continued failure to provide account access.

Count 38

Order: July 24, 2025 and January 20, 2026 hearings

Violation: Continued willful refusal to comply with all disclosure and joint-account orders despite repeated court directives.

Count 39

Order: September 11, 2025 – Freeze Order

Violation: Continued defiance of freeze order after January 20, 2026 hearing.

Count 40

Order: October 9, 2025 – Sanctions Order

Violation: Sanctions remain unpaid.

Count 41

Order: October 9, 2025 – Forensic Accountant Order

Violation: Continued refusal to pay forensic accountant.

Count 42

Order: October 9, 2025 – Vacate Residence Order

Violation: Continued refusal to vacate marital residence.

- 4) At the prior 5/7/2026 hearing, attorney Don Emley accepted appointment as contempt counsel for Husband.
- 5) On 6/26/2026, Husband's contempt counsel Don Emley filed a Request for Order and Memorandum of Points and Authorities asking the Court to discharge counts 1 – 19 and 21 – 42 on the following grounds:
- a. Several Counts allege violations of purported orders that do not exist, including orders alleged to have been made on: July 24, 2024 (Counts 1–5, 21, 22); September 11, 2024 (Counts 6–10, 16, 18); October 9, 2024 (Counts 11–15); and October 14, 2024 (Count 17).
 - b. Count 19 alleges an April 11, 2024 violation of the Standard Family Law Restraining Orders attached to the Summons (Family Law), which was not served on respondent until April 26, 2024.
 - c. Counts 21, 22, 30, 31, 40, and 41 allege violations of orders to pay debts, which orders are not enforceable through contempt.
 - d. Counts 23–27 and 33–38 allege violations of a July 24, 2025 order that merely continued a hearing and contained no other terms.

- 1 e. Counts 28, 30, 31, and 33–42 allege so-called "continued" violations of orders which
2 petitioner claimed respondent violated earlier in her Orders to Show Cause. Mr. Emley
3 cites the following language from *Kohler v. Super Ct.* (2010) 181 Cal.App.4th 1153,
4 1169 ("it was improper to impose multiple punishments for what was basically a single
5 disobedience, although continuing in nature.... The test is whether there are "separate
6 insults to the authority of the court, not whether the insults happened to occur on the
7 same or different days.")
- 8 f. Count 29 alleges a violation of an order that is too vague to be enforceable through
9 contempt. Mr. Emley states, "in Count [2]9, petitioner asks the Court to hold respondent
10 in contempt for alleged acts which she claims violated the following term of the order
11 entered following the September 11, 2025 hearing: 'Wife's request to freeze the parties'
12 bank accounts is GRANTED. Husband is immediately restricted from withdrawing any
13 funds from the accounts identified by Wife in her pleadings.' This term does not contain
14 clear requirements that are stated within the four corners of the order. Anyone attempting
15 to comply with this order would need to review additional unspecified documents to
16 know what to do. '[T]he accounts identified by Wife in her pleadings,' are not
17 identifiable on the face of the order. Nor are the pleadings in which Wife is stated to have
18 identified the accounts which are subject to restriction. The ambiguity is too great to
19 create a clear obligation directing the performance of a specified act so as to create
20 liability for contempt. (See *Little*, supra, 260 Cal.App.2d at p. 316.)"
- 21 g. Counts 32 and 42 fail to state facts constituting contempt. Mr. Emley states, "Petitioner
22 does not elaborate on these conclusory charges anywhere in her April 24, 2026 Order to
23 Show Cause and Affidavit for Contempt, including 'Attachment 8C – Statement of Facts
24 Supporting Contempt,' 'Attachment 8D – Other Material Facts Showing Willful
25 Violations Filed in Support of Petitioner's FL-410 Order to Show Cause and Affidavit for
26 Contempt,' 'Declaration in Support of Contempt Sanctions,' or elsewhere in the filing.
27 The charges do not appear at all in petitioner's November 13, 2025 Order to Show Cause
28 and Affidavit for Contempt. Petitioner sets forth no facts as to the particular conduct she
29 alleges respondent engaged in that causes her to complain of his '[c]ontinued refusal to

1 vacate the marital residence.’ Without notice of the exact nature of the charges against
2 him, respondent is unable to prepare his defense. (See Liu, supra, 273 Cal.App.2d at p.
3 141. Code of Civil Procedure §1211.5(b) provides that the Court may order or permit the
4 accusing party to amend the affidavit to correct any defect or insufficiency. Respondent
5 respectfully asks the Court not to exercise that discretion here. Petitioner's April 24, 2026
6 Order to Show Cause is already her second request to hold respondent in contempt. She
7 included (and repeated) dozens of Counts that fail as a matter of law, including purported
8 ‘violations’ of a July 2025 order that she has been informed on numerous occasions was
9 simply a continuance of a hearing. From a brief review of the Register of Actions, it
10 seems clear this case could well do with less litigation, not more.”

11 6) On 7/1/2026, Wife filed a Responsive Declaration. Wife asks the Court to: (a) deny Husband’s
12 request to dismiss the contempt counts prior to arraignment; (b) proceed with arraignment on all
13 42 counts; (c) set any motion to dismiss individual counts for a separate, properly noticed hearing
14 at which she has had an adequate opportunity to prepare and respond; (d) take into account, in
15 connection with any such future motion, Husband’s continued failure to comply with disclosure
16 obligations or any other court order as of the date of that hearing; and (e) address Wife’s right to
17 counsel under Family Code 2030 before proceeding with any substantive hearing that would
18 benefit Husband, including any motion to dismiss contempt counts.

19 7) On 8/18/2026, Husband’s contempt counsel Mr. Emley filed a Reply Declaration reiterating his
20 previously stated requests and noting that Wife did not substantively respond to the grounds
21 supporting Husband’s request to discharge the various contempt counts.

22 **B. Findings and Order**

23 1) On 7/15/2026, Wife filed a Request for Order seeking (among other remedies) an attorney’s fee
24 award under Family Code section 2030. That Request for Order is set to be heard on 10/6/2026.
25 The Court finds good cause to grant Wife’s request for a continuance of the hearing on Husband’s
26 request to discharge various contempt counts until the Court has adjudicated her Family Code
27 section 2030 request. The hearing on Husband’s request to discharge contempt counts, as well as
28 the arraignment of Husband, is hereby continued to **Thursday, 12/3/2026 at 9:00 AM in Dept.**
29 **404.**

2) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

CORNELIA ROSE LUCAS,

Petitioner

VS.

RYAN DAVID LUCAS,

Respondent

) Case Number: FDI-25-801497

) Hearing Date: August 25, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER TO TERMINATE TEMPORARY SPOUSAL SUPPORT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Cornelia Rose Lucas (Wife) and Respondent Ryan David Lucas (Husband) married on 6/24/2023. Wife contends the parties separated on 6/9/2025, for a marriage of 1 year and 11 months. Husband states the date of separation is TBD. The parties do not have minor children. Wife is represented by attorney Jennifer King. Husband is represented by attorney Audrey Courson.
- 2) On 10/31/2025, a Stipulation and Order was filed which provides:
 - a. Husband shall pay Wife temporary guideline spousal support in the amount of \$2,504 per month. This is based on Husband's base salary of \$315,000 and Wife's base salary of \$172,000.
 - b. The parties shall engage in an annual true-up regarding a two-way Ostler / Smith temporary spousal support order.
 - c. The Stipulation contains no termination date for temporary spousal support.

- 1 3) On for hearing is Husband's Request for Order filed 6/16/2026 wherein Husband asks that the
2 Court terminate temporary spousal support with the final base temporary support payment due on
3 7/1/2026 and the final bonus support true-up to be calculated based upon bonus income received
4 through 7/31/2026. Husband asks in the alternative that the Court set the matter for a long-cause
5 hearing on the issue of spousal support. The Court also reserves jurisdiction over Husband's
6 request for attorney's fees sanctions under Family Code section 271. Husband states that after his
7 support payment on 7/1/2026, he will have paid twelve consecutive months of temporary spousal
8 support to Wife, which is longer than half the length of the marriage. Husband states that Wife is
9 self-supporting. Husband attached a spreadsheet valuing the community estate at \$272,315.73, to
10 be divided equally. Husband's spreadsheet also shows that Husband holds \$317,500 in separate
11 property assets (mostly retirement accounts) and Wife holds \$25,718 in separate property assets
12 (also mostly retirement accounts).
- 13 4) On 6/16/2026, Husband filed a Memorandum of Points and Authorities.
- 14 5) On 7/30/2026, Husband filed an Amended Income and Expense Declaration. Husband states that
15 he is 33 years old and is a Finance Director for SoftBank. Husband states that he earns \$26,250
16 per month in base salary and \$6,300 per month in bonuses. Husband states that he has \$4,000 in
17 cash savings, \$157,500 in easily saleable investments, and \$2,000 in personal property. Husband
18 states that his monthly expenses total \$31,780. Husband states that he owes \$27,000 in debt.
- 19 6) On 8/12/2026, Wife filed a Responsive Declaration asking that the Court deny Husband's
20 request. Wife acknowledges that her salary increased in March 2026 to \$189,200 in annual base
21 salary and states that temporary spousal support should be modified, but not terminated. Wife
22 states that during the parties' marriage, she relocated from London to the Bay Area to support a
23 relocation for Husband's job, and Wife was unemployed for three months as a result. Wife states
24 that she relies on spousal support to help her meet her expenses and pay attorney's fees. Wife
25 states that she has incurred \$96,790.02 in attorney's fees and costs through 8/12/2026. Wife
26 requests \$15,000 in attorney's fees and costs under Family Code section 2030. Wife seeks an
27 additional \$15,000 under Family Code section 271 for fees incurred to respond to the instant
28 Request for Order and because Husband refused to continue the hearing on his Request for Order
29 to a date following the parties' Mandatory Settlement Conference.

- 1 7) On 8/12/2026, Wife's attorney Jennifer King filed a Declaration in Support of Request for
2 Attorney's Fees and Costs, a Memorandum of Points and Authorities, and a Statement of Support
3 Calculation.
- 4 8) On 8/12/2026, Wife filed an Income and Expense Declaration. Wife states that she is 32 years old
5 and is a Principal Customer Success Manager for Intercom, Inc. Wife states she earns \$21,831 per
6 month in base salary plus approximately \$4,000 per month in bonuses. Wife states she has
7 \$24,400 in cash savings, \$39,000 in easily saleable investments, and \$92,000 in personal
8 property. Wife estimates that her monthly expenses total \$12,224. Wife owes approximately
9 \$37,000 in debt. Wife states that she has paid her attorney \$75,083 to date using employment
10 income and a credit card and that she owes an additional \$9,700.
- 11 9) On 8/18/2026, Husband filed a Reply Declaration and Reply Memorandum of Points and
12 Authorities wherein Husband reiterates his original requests, asks the Court to deny Wife's
13 requests for attorney's fees under Family Code sections 2030 and 271, and asks the Court to
14 award him Husband \$8,250 for the attorney's fees and costs he incurred to bring this Request for
15 Order. Husband notes that Wife's 2025 tax returns show that she was able to contribute \$7,000 to
16 her traditional IRA and \$18,732 to her 401(k) in 2025. Husband also argues, "The scale of
17 Petitioner's claimed fees is not commensurate with this case's complexity. This is a twenty-three-
18 month marriage with no children, no real property, and no business valuation issues, and until this
19 motion there had been no substantive motion practice. At comparable hourly rates, Ryan's
20 attorney's fees to date are approximately one-third of the fees Petitioner claims to have incurred,
21 and a substantial portion of Ryan's fees were incurred responding to Petitioner's own broad
22 discovery, including a subpoena seeking approximately seven years of his employment records
23 notwithstanding his prior production of tax returns, W-2s, and paystubs."
- 24 10) On 8/18/2026, Husband's attorney filed a Declaration in Support of Request for Family Code
25 section 271 Sanctions.
- 26 11) The Court notes there is a Mandatory Settlement Conference scheduled in this matter for
27 11/20/2026.
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1 **B. Findings and Order**

- 2 1) Under Family Code section 3603, a temporary spousal support order “may be modified or
3 terminated at any time except as to an amount that accrued before the date of the filing of the
4 notice of motion or order to show cause to modify or terminate.” Family Code section 4320 states
5 in relevant part: “In ordering spousal support under this part, the court shall consider all of the
6 following circumstances:... (l) The goal that the supported party shall be self-supporting within a
7 reasonable period of time. Except in the case of a marriage of long duration as described in
8 Section 4336, a ‘reasonable period of time’ for purposes of this section generally shall be one-half
9 the length of the marriage. However, nothing in this section is intended to limit the court’s
10 discretion to order support for a greater or lesser length of time, based on any of the other factors
11 listed in this section, Section 4336, and the circumstances of the parties.” As stated in *Marriage*
12 *of Left* (2012) 208 Cal.App.4th 1137, 1153, fn. 11, “nothing in section 3600 prevents a trial court
13 from considering the factors listed in section 4320.”
- 14 2) The Court finds that Wife is self-supporting. The Court also finds that, as of July 2026, Husband
15 will have paid Wife temporary spousal support for a period equal to one-half the length of the
16 marriage. The Court finds good cause to terminate temporary spousal support. The final base
17 support amount shall be due 7/1/2026 and the final bonus support true-up shall be calculated
18 based upon bonus income received through 7/31/2026.
- 19 3) The Court finds that a disparity exists in the parties’ access to funds to pay legal fees and that
20 Husband has the ability to contribute to Wife’s attorney’s fees and costs while paying his own
21 attorney’s fees and costs. The Court finds that the amount requested by Wife for need-based
22 attorney’s fees and costs, \$15,000, is just, reasonable, and necessary. Husband shall pay \$15,000
23 to Wife no later than 9/15/2026.
- 24 4) Both parties’ requests for Family Code section 271 attorney’s fees sanctions are denied.
- 25 5) Husband’s attorney shall prepare the Findings and Order After Hearing.
- 26 6) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
27 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
28 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
29 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the

1 proposed order after hearing directly to the court. Failure to submit the order after hearing within
2 10 days may allow the other party to prepare a proposed order and submit it to the court in
3 accordance with CA Rules of Court, Rule 5.125(d).
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

CASEY NOELLE NUCKOLS FLORIANI,

Petitioner

VS.

NICCOLO TORU FLORIANI,

Respondent

) Case Number: FDV-25-818707

) Hearing Date: August 25, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

ORDER TO SHOW CAUSE AND AFFIDAVIT FOR CONTEMPT

TENTATIVE RULING

The Court has been informed that attorney Margaret Pendergast is available to accept appointment as Mother's contempt counsel. The parties are ordered to appear on 8/25/2026 at 9AM in Dept. 404 in-person or by Zoom video. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

- 1) On for hearing is Respondent Niccolo Floriani (Father)'s Order to Show Cause and Affidavit for Contempt filed 5/4/2026 wherein Father alleges that Petitioner Casey Floriani (Mother) violated the Findings and Order After Hearing filed 3/2/2026 which provides Father with supervised visitation at Rally for one hour per week plus two hours of professionally supervised visitation each week. The order also provides that Father shall be solely responsible and pay all costs of the supervised visits. Father states that on 4/23/2026, he was notified by a Child First Supervised Visitation Program Direct Eric Baker that Mother was cancelling the visitation set for Saturday, 4/25/2026. Father states he immediately responded that the cancellation was without his consent and unacceptable. Father states he is required to give 72 hours advance notice for cancellations;

1 otherwise, he is charged \$327.80 for visitation by Child First and \$277.25 for an American Sign
2 Language interpreter. Father states that on Friday, 4/24/2026, Mr. Baker emailed him stating he
3 had communicated his request to Mother that the 4/25/2026 visit remain in place. Father states
4 that on 4/25/2026, he arrived at the Academy of Science in San Francisco at 2:50 PM and he
5 waited until 5:00 PM and Mother did not show up. Supervised visitation provider Lowell Davis
6 documented that Mother was a “no-show” and left with the ASL interpreter. In addition to his
7 request for an OSC Re: Contempt, Father requests that Mother reimburse him for the \$605.06 he
8 was charged by the visitation supervisor and the ASL interpreter plus attorney’s fees and costs for
9 bringing this OSC Re: Contempt.

- 10 2) Per the Proof of Service filed 6/24/2026, Mother was personally served with the OSC: Re
11 Contempt on 6/23/2026.
- 12 3) At the prior 7/9/2026 hearing on Father’s OSC Re: Contempt, the Court made a finding that
13 Mother qualifies for appointment of contempt counsel and continued matter to 8/25/2026 for
14 arraignment.
- 15 4) On 7/13/2026, Judge Wiley issued a 1-year Domestic Violence Restraining Order protecting
16 Mother against Father.
- 17 5) Mother has not filed any pleadings with respect to Father’s OSC Re: Contempt.

18 **B. Findings and Order**

- 19 1) **The Court has been informed that attorney Margaret Pendergast is prepared to accept**
20 **appointment as Mother’s contempt counsel. The parties are ordered to appear on 8/25/2026**
21 **at 9AM in Dept. 404 in-person or by Zoom video.**
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